Lampleigh v. Brathwait (1615)

Doctrine of Consideration in Contract Law

CONTRACT LAW · 17TH CENTURY ENGLISH COMMON LAW

Introduction

Setting the Stage: English Contract Law in 1615

In 17th-century England, the common law courts were actively shaping the foundational doctrines of contract law. Central to any enforceable agreement was the concept of consideration — the "bargained-for exchange" that distinguished a binding promise from a mere gift.

Lampleigh v. Brathwait (1615) emerged as a landmark case that tested the boundaries of this doctrine, asking whether a promise made after a service had already been rendered could still be legally binding.

Why This Case Matters

It carved out a critical exception to the rule that past consideration cannot support a valid contract.

Presented by Team

This introduction contextualizes the legal landscape from which the case arose.

Concept of Consideration

Types of Consideration

Past Consideration

A benefit already conferred before the promise is made. *Generally not valid.*

Which we will further discuss in this case

Present Consideration

A simultaneous exchange at the time of the promise. *Valid and enforceable.*

Future Consideration

A promise to act at a later date in exchange. *Valid if sufficiently certain.*

The General Rule : An act done before the promise is made cannot normally form valid consideration. Reason: There is no bargained-for exchange; the promisor receives a benefit without giving anything in return at the time of the act. Classic position: “Past consideration is no consideration. ”This prevents people from being bound by promises made purely out of gratitude or moral obligation after the fact.

Exception to the Past Consideration Rule : An important exception was established in *Lampleigh v Braithwaite* (1615). Past consideration can be valid if the act was performed at the promisor’s request and a later promise to pay is made. The request and the subsequent promise are treated as a single transaction. The court views this as implying an understanding from the outset that the service would be rewarded

Consideration in Contract Law

Consideration is the essential element of a valid contract, representing the value exchanged between parties.

Definition

"A valuable consideration... may consist either in some right, interest, profit or benefit accruing to the one party, or some forbearance, detriment, loss or responsibility given, suffered or undertaken by the other."

Currie v Misa (1875) LR 10 Ex 153

Key Rules

- Must be sufficient but not necessarily adequate
- Must move from the promisee
- Must be present or future (executed or executory)
- Past consideration is generally not valid

Types of Consideration

Executory

Promise for promise

Executed

Act done in exchange for promise

Past

Act done before promise (generally invalid)

Issues

The Central Legal Question

Key Legal Issue

Is “Past consideration” a Valid consideration?

1.Whether a promise made after the performance of an act can legally be enforceable .

2. Whether past consideration is valid consideration in contract law.

Case Story

The Facts: A Journey for Pardon

1

The Crime

Thomas Brathwait unlawfully killed a man, placing himself in grave legal jeopardy under the Crown's jurisdiction.

2

The Request

Brathwait personally requested Lampleigh to ride to the King and obtain a royal pardon on his behalf.

3

The Service

Lampleigh traveled extensively — at his own effort and expense — to secure the pardon from the King.

4

The Promise

Brathwait, after the pardon was secured, promised Lampleigh £100 as reward. He never paid.

5

The Dispute

Lampleigh sued in court. The question: was the subsequent promise legally binding?

Plaintiff vs Defendant Arguments

Plaintiff – Lampleigh

Defendant – Brathwait

Plaintiff vs Defendant Arguments

Plaintiff – Lampleigh

- Service was performed at the request of the defendant

Defendant – Brathwait

Plaintiff vs Defendant Arguments

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- Service was performed at the request of the defendant

Defendant – Brathwait

- Promise to pay was made after the act was completed

Plaintiff vs Defendant Arguments

Plaintiff – Lampleigh

- Service was performed at the request of the defendant
- Effort involved significant time, cost, and risk

Defendant – Brathwait

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Plaintiff vs Defendant Arguments

Plaintiff – Lampleigh

- Service was performed at the request of the defendant
- Effort involved significant time, cost, and risk

Defendant – Brathwait

- Promise to pay was made after the act was completed
- No formal agreement existed before performance

Plaintiff vs Defendant Arguments

Plaintiff – Lampleigh

- Service was performed at the request of the defendant
- Effort involved significant time, cost, and risk
- Subsequent promise implies prior understanding of payment

Defendant – Brathwait

- Promise to pay was made after the act was completed
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Plaintiff vs Defendant Arguments

Plaintiff – Lampleigh

- Service was performed at the request of the defendant
- Effort involved significant time, cost, and risk
- Subsequent promise implies prior understanding of payment

Defendant – Brathwait

- Promise to pay was made after the act was completed
- No formal agreement existed before performance
- Under contract law, past consideration is invalid

Plaintiff vs Defendant Arguments

Plaintiff – Lampleigh

- Service was performed at the request of the defendant
- Effort involved significant time, cost, and risk
- Subsequent promise implies prior understanding of payment
- Moral obligation + prior request = enforceable promise

Defendant – Brathwait

- Promise to pay was made after the act was completed
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Plaintiff vs Defendant Arguments

Plaintiff – Lampleigh

- Service was performed at the request of the defendant
- Effort involved significant time, cost, and risk
- Subsequent promise implies prior understanding of payment
- Moral obligation + prior request = enforceable promise

Defendant – Brathwait

- Promise to pay was made after the act was completed
- No formal agreement existed before performance
- Under contract law, past consideration is invalid
- Therefore, promise is not legally binding

Judgment & Legal Principle

The Court's Ruling: A New Precedent

The Holding

The court held the promise enforceable. Lampleigh was entitled to recover the £100 promised by Brathwait.

The Reasoning

The prior request and the subsequent promise together formed a single, integrated transaction — not a gratuitous promise following an unrequested act.

The Principle Established

Past consideration is valid where the act was performed at the express request of the promisor, and the parties understood payment would follow.

Impact & Related Cases

Old English Law vs Indian Law

Old English Law

Old View
Past considerations no considerations

New View
If a prior act was done at the request of the promisor, it can be enforceable

Case Example: Pau on V. Lau Yiu Long

Indian Law

Governed by Section 2(d) of the Indian Contract Act, 1872

Past consideration is valid if done at the promisor's request

Indian law formally recognizes and applies this principle

Case Example: Durga Parsad V. Baldeo

Importance of the Case

Established the principle that past consideration can be valid if done on request

Became the foundation for recognizing past consideration in modern contract law

Influenced statutory law, including Indian Contract Act

Clarified fairness in enforcing promises linked to prior acts

Conclusion

Key Takeaways & Reflections

Consideration is Foundational

Without valid consideration, a promise remains a moral obligation — not a legal one. This doctrine is the bedrock of binding contracts.

The *Lampleigh* Exception

When an act is performed at the promisor's request, and a subsequent promise of payment follows, the law treats this as a single enforceable transaction.

Modern Relevance

This principle continues to shape commercial and employment law, particularly in disputes over implied or deferred compensation agreements.

Q&A and Interaction Part

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Thank You

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